IN THE COURT OF THE DISTRICT JUDGE, VARANASI

Original Suit No. 214 of 2019

Suresh Kumar Yadav vs. Mahesh Kumar Yadav & Others

1. PARTIES TO THE SUIT

Plaintiff: Suresh Kumar Yadav, S/o Late Ram Lakhan Yadav, resident of Village Kandwa, Tehsil Sadar, District Varanasi, Uttar Pradesh.

Defendant No. 1: Mahesh Kumar Yadav, S/o Late Ram Lakhan Yadav, resident of the same village (brother of the Plaintiff).

Defendant No. 2: Rajesh Kumar Yadav, S/o Late Ram Lakhan Yadav, resident of the same village (brother of the Plaintiff and Defendant No. 1).

2. NATURE OF THE SUIT

This is a suit for partition and separate possession of ancestral agricultural land measuring 4.2 acres, situated in Khasra No. 341, 342, and 345 of Village Kandwa, Tehsil Sadar, District Varanasi, along with a residential house constructed on Khasra No. 341 (hereinafter "the suit property").

3. FILING AND KEY DATES

The present suit was filed on 14 March 2019 before the District Court, Varanasi. The following dates are relevant to the chronology of this matter:

- 14 March 2019: Suit filed by the Plaintiff. - 22 May 2019: Summons issued to Defendants No. 1 and 2. - 9 August 2019: Written statement filed by Defendant No. 1, denying the existence of any oral partition and asserting exclusive possession over Khasra No. 341. - 3 December 2019: Written statement filed by Defendant No. 2, supporting the Plaintiff's claim for partition. - 17 February 2021: Court directed a local commissioner to conduct a site inspection and submit a report on the physical possession of the suit property. - 28 July 2021: Commissioner's report submitted, noting that the Plaintiff was in possession of approximately 1.4 acres, Defendant No. 1 in possession of approximately 1.8 acres including the residential house, and Defendant No. 2 in possession of the remaining 1.0 acre. - 11 April 2022: Plaintiff filed an application under Order XXVI Rule 9 CPC seeking a fresh survey, alleging discrepancies in the commissioner's report. - 6 September 2023: Application for fresh survey allowed by the Court. - 19 January 2024: Fresh survey report submitted, broadly confirming the 2021 commissioner's findings with minor boundary corrections. - 2 June 2025: Matter listed for final arguments.

4. FACTS OF THE CASE

The suit property originally belonged to Late Ram Lakhan Yadav, father of the Plaintiff and both Defendants, who died intestate (without a will) on 8 June 2016. Under the Hindu Succession Act, 1956, as amended in 2005, the three sons -- the Plaintiff, Defendant No. 1, and Defendant No. 2 -- each inherited an equal, undivided one-third share in the suit property as coparceners.

The Plaintiff alleges that in early 2017, an informal family arrangement was orally agreed upon among the three brothers, under which each brother would take physical possession of a roughly equal portion of the agricultural land, while the residential house would remain jointly used. The Plaintiff further alleges that Defendant No. 1 subsequently began treating the residential house and the adjoining 1.8 acres as his exclusive property, excluding the Plaintiff and Defendant No. 2 from any use or benefit of that portion, in violation of the 2017 arrangement.

Defendant No. 1, in his written statement, denies that any such oral arrangement was ever concluded. He contends that he has been in continuous, open, and exclusive possession of Khasra No. 341 (including the residential house) since 2016, that he alone has paid the property tax and maintenance costs for this portion, and that this long, uninterrupted possession should be recognized as a valid partition by conduct, even without a registered partition deed.

Defendant No. 2 has taken a position broadly supportive of the Plaintiff, stating that he recalls the 2017 family discussion and confirming that all three brothers were meant to receive roughly equal shares.

5. ISSUES FRAMED BY THE COURT

(i) Whether there was a concluded oral partition/family arrangement in 2017 as alleged by the Plaintiff? (ii) Whether Defendant No. 1's long possession and payment of property tax over Khasra No. 341 amounts to partition by conduct, sufficient to defeat the Plaintiff's claim for a formal partition? (iii) Whether the Plaintiff is entitled to a decree for partition and separate possession of his one-third share, and if so, in what manner should the suit property be divided? (iv) Relief, if any, and costs.

6. RELEVANT LEGAL PROVISIONS RELIED UPON

Counsel for the Plaintiff has relied upon Section 8 of the Hindu Succession Act, 1956 (as amended in 2005), which governs succession to a male Hindu dying intestate, and provides that Class I heirs -- including sons -- take the property as tenants-in-common in equal shares, not as joint tenants with a right of survivorship.

Counsel for Defendant No. 1 has relied upon Section 44 of the Transfer of Property Act, 1882, concerning the rights of a co-owner in possession, and has cited the principle -- said to be derived from the Allahabad High Court's ruling in a similar matter -- that a long-standing partition arrangement, even if informal and unregistered, may be treated as valid and binding if it has been acted upon by the parties without objection for a substantial period exceeding 15 years. Counsel submits, in the alternative, that even a shorter period of undisturbed, exclusive possession -- coupled with payment of taxes -- raises a strong presumption of a completed partition by conduct.

7. COMMISSIONER'S REPORT -- KEY FINDINGS (28 July 2021)

The court-appointed commissioner, Advocate Commissioner Shri R.P. Tiwari, personally inspected the suit property on 15 July 2021 in the presence of all three parties. The report records the following measurements and observations:

- Khasra No. 341 (1.8 acres, including residential house): found in exclusive possession of Defendant No. 1, who has resided there since 2016 and produced property-tax receipts in his own name for 2017-2021. - Khasra No. 342 (1.4 acres): found in possession of the Plaintiff, who has cultivated wheat and sugarcane on this portion since 2017. - Khasra No. 345 (1.0 acre): found in possession of Defendant No. 2. - No physical boundary walls or permanent partition markers were found between the three portions; boundaries were identified based on cultivation patterns and witness testimony from neighboring landholders.

8. PLAINTIFF'S PRAYER

The Plaintiff prays that the Hon'ble Court be pleased to pass a decree for partition and separate possession, allotting to the Plaintiff his rightful one-third share of the suit property by metes and bounds, including a proportionate share in the residential house or its market value in lieu thereof, together with costs of the suit.

9. NOTE ON APPLICABLE CRIMINAL-LAW CROSS-REFERENCE

During the pendency of this suit, a related complaint was filed by the Plaintiff before the local police station alleging that Defendant No. 1 had, on one occasion in April 2020, verbally threatened him and obstructed his entry onto the disputed portion of the land. No FIR was registered, and the matter was resolved through a compromise recorded by the local Lekhpal. This incident is noted here for context only and does not form a separate cause of action in the present partition suit. For reference, criminal trespass of this nature is addressed under Section 329 of the Bharatiya Nyaya Sanhita, 2023 (corresponding to Section 441 of the erstwhile Indian Penal Code).

10. CURRENT STATUS

As of the date of this record, the matter stands listed for final arguments on 2 June 2025. Both the original (2021) and fresh (2024) commissioner reports are on record. No final judgment has yet been passed. The Court has indicated that judgment is expected to be reserved after final arguments are heard from both sides.

11. DOCUMENTS ON RECORD

(i) Certified copy of Khatauni (revenue record) for Khasra Nos. 341, 342, and 345, Village Kandwa. (ii) Death certificate of Late Ram Lakhan Yadav, dated 10 June 2016. (iii) Property-tax receipts filed by Defendant No. 1 for years 2017 to 2021. (iv) Commissioner's report dated 28 July 2021. (v) Fresh survey report dated 19 January 2024. (vi) Affidavit of Defendant No. 2 dated 3 December 2019.

[End of Record -- Prepared for case-management purposes]